



HIGH COURT JUDGES (LEAVE, PENSION AND PRIVILEGES) (AMENDMENT) ORDER, 1998

Last Updated: 1998-12-01

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PRESIDENT'S ORDER 3 of 1998

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ORDER

WHEREAS it is expedient further to amend the High Court Judges (Leave, Pension and Privileges) Order, 1997 (P.O.No.3 of 1997), for the purposes hereinafter appearing;

NOW, THEREFORE, in exercise of the powers conferred by the Fifth Schedule to the Constitution of the Islamic Republic of Pakistan, the President is pleased to make the following Order :-

1. Short title and commencement.-(1) This Order may be called the High Court Judges (Leave, Pension and Privileges) (Amendment) Order, 1998.

(2) It shall come into force at once.

2. Amendment of Paragraph 15, P.O. No.3 of 1997. In the High Court Judges (Leave, Pension and Privileges) Order, 1997 (P.O. 3 of 1997), hereinafter referred to as the said Order, in paragraph 15, after the proviso, the following Explanation shall be added, namely:-

"Explanation.- The expression "salary" means the salary referred to in paragraph 1 of the Fifth Schedule to the Constitution of the Islamic Republic of Pakistan or such higher salary as the President may determine from time to time but shall not include any allowance or amount representing any privilege or facility."

3. Insertion of new paragraph 15A, P.O. No.3 of 1997. In the said Order, after paragraph 15, the following new paragraph shall be inserted, namely:-

"15A. Pension on re-employment etc.-(1) Where a Judge in receipt of a pension is appointed to a post in connection with the affairs of the Federation or a Province or a body owned or controlled by any such Government or is holding any such post he shall draw the pay sanctioned for the post minus his gross pension.

(2) Where a Judge who is receiving a pension-

(i) is appointed to act an arbitrator by the Federal Government or a Provincial Government or a Commission of Inquiry; or

(ii) is required by such Government to give a legal opinion in any matter.

he shall not receive any fee or compensation for so acting or tendering a legal opinion except reimbursement of out of pocket expenses.

(3) Nothing contained in subparagraphs (1) and (2) shall apply to a Judge who is in receipt of a pension before the commencement of the High Court Judges (Leave, Pension and Privileges) (Amendment) Order, 1998, and opts not to

have his pension increased as a consequence of the increase in salaries provided thereby."

4. Substitution of paragraph 19, P.O. No.3 of 1997.-In the said Order for paragraph 19 the following shall be substituted namely:-

"19. Commutation of pension.-(1) Subject to paragraphs (2) and (3) the Civil Pension (Commutation) Rules shall, with necessary modifications, apply to a Judge.

(2) Where the pension of a Judge increases at any time after his retirement on account of a subsequent increase of salaries payable to Judges, he shall not be entitled to have the differential of the pension payable to him at the time of his retirement and the subsequent increase in pension commuted.

(3) Where a Judge at the time of his appointment to a High Court was in receipt of a pension in respect of any post and had got any part of the said pension commuted, the amount of commutation so paid shall be deducted from the amount of commutation arrived at under sub-paragraph (1)."

5. Substitution of paragraph 20, P.O. No.3 of 1997. In the said Order for paragraph 20, the following shall be substituted, namely:--

"20. Abeyance of pension.-(1) The pension admissible to a Judge under this Order shall be held in abeyance on his appointment as a Judge of the Supreme Court and shall cease to be payable if on his retirement as a Judge of the Supreme Court, he is entitled to a pension as Judge of that Court.

Explanation.--In this paragraph the expression "Judge of the Supreme Court" includes the Chief Justice of that Court.

(2) Where a person before his appointment as a Judge is in receipt of a pension in respect of any post such pension, on his appointment as Judge, shall be held in abeyance and shall cease to be payable if on his retirement as Judge he is entitled to pension as Judge."

6. Amendment of paragraph 20, P.O. No.3 of 1997. In the said Order, in paragraph 21, in sub-paragraph (2), for the words "thirteen thousand five hundred" the words "twenty-five thousand" shall be substituted.

7. Amendment of paragraph 23, P.O. No.3 of 1997. In the said Order, for paragraph 23, the following shall be substituted, namely:-

"23. Superior Judicial Allowance. A Judge shall be entitled to be paid monthly, a Superior Judicial Allowance amounting to six thousand rupees."

Explanation.- For the purpose of this paragraph "Judge" shall include "the Chief Justice" or "an Acting Chief Justice".

8. Omission of paragraph 24, P.O. No.3 of 1997. In the said Order, paragraph 24 shall be omitted.

9. Amendment of paragraph 27, P.O. No. 3 of 1997. In the said Order, in paragraph 27 the words and figures "or paragraph 24" shall be omitted.
